

STATE OF NORTH CAROLINA

COUNTY OF VANCE

The Vance County Board of Commissioners met in regular session on Monday, May 3, 2021 at 6:00 p.m. in the commissioners' conference room, Vance County Administration Building, 122 Young Street, Henderson, NC. Those commissioners present were as follows: Chairman R. Dan Brummitt, Vice-Chairman Leo Kelly, Jr., Commissioners Carolyn Faines, Yolanda J. Feimster, Thomas S. Hester, Jr., Archie B. Taylor, Jr., and Gordon Wilder.

Absent: None.

Also present were County Manager Jordan McMillen, Finance Director Katherine Bigelow, County Attorney Jonathan S. Care, and Clerk to the Board Kelly H. Grissom.

Chairman R. Dan Brummitt gave the invocation.

Public comments were heard first. Ms. Alicia Campbell appeared before the board and requested that the board recognize June 4, 2021 as National End Gun Violence Awareness Day and proclaim that day to be "Wear Orange Day" in Vance County. She explained that in 2016, her son, Ahmad Campbell, a former Southern Vance High School student who was 21 years old at the time and a college junior at NC A&T University was tragically shot and killed while attending an off-campus party. Since that time, her family created the Ahmad Campbell Scholarship Foundation and continues to advocate for gun safety. Chairman R. Dan Brummitt thanked Ms. Campbell for her remarks and stated that it would be appropriate for the county to draft a proclamation in recognition of National End Gun Violence Awareness Day and proclaim June 4, 2021 as Wear Orange Day in Vance County.

Ms. Lila Hight, representing Forgotten Victims of Vance County, spoke in regards to drug induced deaths in Vance County. She asked the board to budget more funding for the Vance County Sheriff's Office to combat the drug epidemic in the county. She stated that she has lost three family members to drugs within a three year period and noted that Vance County has one of the highest overdose rates in the state. She asked the board to provide more funding so this problem can be addressed.

As advertised, the board would be sitting as the Board of Equalization and Review to hear from any taxpayers who feel their property is incorrectly listed or appraised. Porcha Brooks, Tax Administrator, was also present. There was no one present who wished to speak on this matter.

Chairman Brummitt stated that he will hold the Board of E&R open during this meeting, recess at the end of the meeting, and re-open during the June 7 regular meeting.

As advertised, a public hearing was held to receive public comments regarding proposed amendments to the Vance County Zoning Ordinance which will bring the ordinance into compliance with the new Chapter 160D of the NC General Statutes. The major changes include the following:

- All statute references are updated from Chapter 153A to Chapter 160D
- Conditional Use Permits are to be renamed Special Use Permits
- Hearings are now referred to as evidentiary hearings
- If nonconforming uses are discontinued, they are now given more time to be in conformance - two years vs. one year
- Board of Adjustment procedural processes are removed from the ordinance and will be put in a separate procedural guide.

As there was no one present who wished to speak on this matter, Chairman R. Dan Brummitt declared the public hearing closed.

Motion was made by Commissioner Thomas S. Hester, Jr. to approve the amendments to the zoning ordinance as presented. This motion was seconded by Commissioner Carolyn Faines and unanimously approved.

Mr. Frank Carpenter, North Carolina Department of Transportation, was next on the agenda to provide an activity update. He stated that he has met with Sheriff Brame and identified areas that have become dumping areas. Cameras have been placed in these areas. He stated that during the recent Litter Sweep, three crews were out and about during a two week period picking up trash along the roadsides. The problem is simply that there is not enough funding and not enough manpower to keep up with the litter problem in the county. Inmate labor is no longer available so they are doing the best they can. He also noted that debris pick-up from the ice storm is continuing although it has slowed down due to theft of catalytic converters, but they plan to finish as soon as possible. He noted that they may need to hire contractors to help with this.

The board thanked Mr. Carpenter for his report.

Mr. Frankie Nobles, Vance County Employee Engagement Team Chair, thanked the board for allowing the engagement team to begin an employee of the month recognition. Employees are nominated by their peers and this month's recognition goes to Megan Cottrell with Vance County Animal Services. He stated that Ms. Cottrell began her career in November 2019 as an Animal Services Officer. In January 2021, she was promoted to Lead Officer. Her peers noted that she goes above and beyond her duties, is always willing to come in early or stay late, and is always willing to help when needed. Ms. Cottrell will receive \$100 and a designated parking space for

the month. Mr. Nobles and Chairman Brummitt presented Ms. Cottrell with a certificate of appreciation and thanked Ms. Cottrell for her dedication to Vance County.

Mr. Brian Short, Emergency Operations Director, informed the board of a revision to the Regional Hazard Mitigation Plan. He noted that jurisdictions are required to update their plans every five years and to subject those plans for state and federal review. Jurisdictions are then required to formally adopt the plan and its revisions in order to continue to be eligible for state and federal grant dollars. He noted that Vance County has been part of a regional collaborative effort with Granville, Franklin and Warren Counties to develop and maintain a regional plan, appropriately named the Tar River Regional Hazard Mitigation Plan. Each of the four counties has been directly involved with the most recent update for nearly a year. Mr. Short requested the board to adopt the revised plan by resolution.

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Leo Kelly, Jr., vote unanimous, to approve the following resolution adopting the Tar River Regional Hazard Mitigation Plan:

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RESOLUTION
by the
Vance County Board of Commissioners
Adopting the Tar River Regional Hazard Mitigation Plan

WHEREAS, the citizens and property within Vance County are subject to the effects of natural hazards that pose threats to lives and cause damage to property, and with the knowledge and experience that certain areas of the county are particularly vulnerable to drought, extreme heat, hailstorm, hurricane and tropical storm, lightning, thunderstorm wind/high wind, tornado, winter storm and freeze, flood, hazardous material incident, and wildfire; and

WHEREAS, the County desires to seek ways to mitigate the impact of identified hazard risks; and

WHEREAS, the Legislature of the State of North Carolina has in Part 6, Article 21 of Chapter 143; Parts 3, 5, and 8 of Article 19 of Chapter 160A; and Article 8 of Chapter 160A of the North Carolina General Statutes, delegated to local governmental units the responsibility to adopt regulations designed to promote the public health, safety, and general welfare of its citizenry; and

WHEREAS, the Legislature of the State of North Carolina has enacted General Statute Section 166A-19.41 (*State emergency assistance funds*) which provides that for a state of emergency declared pursuant to G.S. 166A-19.20(a) after the deadline established by the Federal Emergency Management Agency pursuant to the Disaster Mitigation Act of 2002, P.L. 106-390, the eligible entity shall have a hazard mitigation plan approved pursuant to the Stafford Act; and

WHEREAS, Section 322 of the Federal Disaster Mitigation Act of 2000 states that local governments must develop an All-Hazards Mitigation Plan in order to be eligible to receive future Hazard Mitigation Grant Program Funds and other disaster-related assistance funding and that said Plan must be updated and adopted within a five year cycle; and

WHEREAS, it is the intent of the Board of Commissioners of Vance County to fulfill this obligation in order that the County will be eligible for federal and state assistance in the event that a state of disaster is declared for a hazard event affecting the County.

1. Adopts the Tar River Regional Hazard Mitigation Plan.
2. Vests Vance County Emergency Management with the responsibility, authority, and the means to:
 - (a) Inform all concerned parties of this action.
 - (b) Cooperate with Federal, State and local agencies and private firms which undertake to study, survey, map and identify floodplain areas, and cooperate with neighboring communities with respect to management of adjoining floodplain areas in order to prevent exacerbation of existing hazard impacts.

4. Agrees to take such other official action as may be reasonably necessary to carry out the objectives of the Hazard Mitigation Plan.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to Board

Sheriff Curtis Brame and Major John Shelton were next on the agenda and stated that the jail is in critical need of detention officers. Sheriff Brame stated that salaries need to be comparable to surrounding counties and asked the board to consider a salary increase for detention officers in order to attract more applicants. Major Shelton echoed these remarks. Sheriff Brame recommended \$34,500 as the starting salary. He stated that the need is so critical, he is placing Deputies at the jail to fill in for the vacancies. Chairman Brummitt referred this matter to the Human Resources Committee for discussion and review. He directed the Properties Committee to meet to discuss and review the condition of the jail facility.

Sheriff Brame responded to the public comment earlier in the meeting about the lack of funding to handle the drug problem in the county. He formally requested 10 more deputy positions and 10 vehicles in order to address this matter.

Water District Board

Chairman R. Dan Brummitt called the water district board to order and the March 2021 monthly operations report was presented to the board for information. Chairman Brummitt adjourned the water district board.

Committee Reports and Recommendations

Planning and Environmental Committee – 160D Zoning Ordinance Amendments. Action was taken on this matter after the public hearing earlier in the meeting and the amendments were approved. The following is the write-up from the committee meeting. The committee (Faines, Kelly & Wilder) met Monday, April 19 to review proposed changes to the county's zoning ordinance. The amendments are required to be in place by July 1, 2021 and are a result of recent changes in state law which reorganized zoning statutes. The major changes include the following:

- All statute references are updated from chapter 153A to chapter 160D
- Conditional Use Permits are to be renamed Special Use Permits
- Hearings are now referred to as evidentiary hearings
- If nonconforming uses are discontinued they are now given more time (2 years) vs. 1 year previously to be in conformance.
- Board of Adjustment procedural processes are removed from the ordinance and will be put in a separate procedural guide.

The planning board and the planning/environmental committee have reviewed the changes and are recommending approval. Recommendation: Approve amendments to the zoning ordinance as presented.

Human Resources Committee – Personnel Policy Manual Update. County Manager Jordan McMillen stated that the committee (Faines, Taylor & Wilder) met Tuesday, April 20 to continue review of updates to the personnel policy manual. There was considerable discussion on the separate hiring authorities (Sheriff, Register of Deeds, Elections Board, and Social Services Board) and the committee wanted the full board to be aware these authorities and their employees do not automatically come under the county's personnel policies. The committee discussed the idea that the county is financially responsible for each, even though from a legal and policy standpoint they have the option of being separate. Staff believes the majority of these authorities will voluntarily agree to come under the policies which in turn gives them access to the county HR department and services, although it is not required. The committee suggested providing an MOU

to each authority formalizing use of the county policies. Staff provided an organizational chart to assist in recognizing the separate hiring authorities and employees that are not subject to the manual as adopted. Following review of the updated policies, the committee recommended approval of the updated manual.

Motion was made by Commissioner Gordon Wilder to approve the personnel policy manual updates as presented. This motion was seconded by Commissioner Thomas S. Hester, Jr. and unanimously approved.

Chairman Brummitt thanked staff for their hard work and many hours that were put into these policy changes.

Public Safety Committee – Lease Agreement for EMS Unit Housed at Bearpond VFD. Mr. McMillen stated that the committee (Brummitt, Wilder & Faines) met Thursday, April 29 to discuss formalizing a lease agreement with Bearpond Volunteer Fire Department. The county has housed an ambulance and associated staff at Bearpond VFD since December 2009 which serves the southern portion of the county. This arrangement has been done based upon a verbal agreement that has inconsistent pricing based upon cost factors at the station. The committee was informed that the agreement would have a set monthly rate and that Bearpond had input into the terms of the lease. The committee was agreeable to the lease and wanted to ensure Bearpond had a final review before bringing it back to the full board for approval. It is anticipated the agreement would come to the board at the June meeting.

Public Safety Committee – Rescue Funding. Mr. McMillen reported that the committee met Thursday, April 29 at the rescue squad to discuss the level of service the squad provides and the county's funding level for rescue services. The data provided indicated that Vance County is providing a higher level of funding for rescue services than surrounding counties but the county is also receiving a higher level of service than is typically provided in other counties. The committee discussed the feasibility of releasing a request for proposal for rescue services and determined it would be difficult for other providers to match the level of service currently provided. The committee recommended extending the existing contract with the Rescue Squad and was agreeable to staff providing a draft agreement to the squad for review. The contract would be brought back to the board for approval and the intent is to have it in place by July 1.

Finance Director’s Report

Surplus Property. Finance Director Katherine Bigelow stated that the Elections Office has a variety of old equipment and furniture in very poor condition that needs to be removed from the building. A list of the items was provided to the board. She noted that the board of elections has approved these items as surplus.

Motion was made by Commissioner Carolyn Faines, seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, to approve the property presented as surplus and authorize the Finance Director to dispose of said property accordingly as allowed by state statute.

Phase 1B Water – Reimbursement Resolution. Ms. Bigelow stated that in March of 2019 the board approved an engineering services agreement with LKC Engineering related to Phase 1B of the water system. Since that time, LKC has updated the engineering reports, has finalized the drawings, easement and permits, and has assisted the county in applying for USDA funding. She stated that the county anticipates a letter of conditions with funding from USDA in the coming weeks. LKC has submitted their first invoice totaling \$61,100 for 50% of design and in order to proceed with payment, a reimbursement resolution is necessary. The reimbursement resolution will allow the county to reimburse itself later from proceeds of the USDA funding.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Carolyn Faines, vote unanimous, to approve the following reimbursement resolution covering costs of engineering services for Phase 1B of the water project.

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**RESOLUTION OF THE WATER DISTRICT DECLARING ITS
OFFICIAL INTENT TO REIMBURSE EXPENDITURES UNDER
UNITED STATES DEPARTMENT OF TREASURY REGULATIONS**

BE IT RESOLVED, by the Board of Commissioners (the “Board”) of the Water District of County of Vance, North Carolina (the “District”) as follows:

Section 1. It is hereby found, determined and declared by the Board as follows:

(a) Section 1.150-2 of the Treasury Regulations (the “Regulations”) prescribes specific procedures which will be applicable to certain bonds or notes issued by the District including, without limitation, a requirement that the District declare its official intent to reimburse certain expenditures with proceeds of debt to be incurred by the District prior to, or within sixty (60) days of, payment of the expenditures to be reimbursed.

(b) This declaration of official intent is made pursuant to Section 1.150-2 of the Treasury Regulations to expressly declare the official intent of the District to reimburse itself from the proceeds of debt to be hereinafter incurred by the District for certain expenditures paid by the District on or after the date which is sixty (60) days prior to the date hereof.

(c) The District desires to expend its own funds for the purpose of paying certain costs of design and other preliminary expenditures in relation to the phase 1B expansion of the county public water system (the “Project”), for which expenditures the District reasonably expects to reimburse itself from the proceeds of debt to be incurred by the District.

(d) \$355,000 is the maximum principal amount of debt expected to be incurred for the purpose of paying the costs of the Project as specified in (c) above.

Adopted this 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Water District Board

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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County Attorney’s Report

REO Properties – Bid Acceptance Resolutions. County Attorney Jonathan S. Care noted that during the April meeting, the board of commissioners approved the public sale process for 421 Alexander Avenue – Parcel 0028 05007, 403 Bobbitt Street – Parcel 0060 04002A, First Street Lot – Parcel 0066 02006, 2229 St. Matthews Street – Parcel 0067 01003, 2257 St. Matthews Street – Parcel 0067 01008, 813 Roberson Street – Parcel 0068 02015, Rockspring Street Lot 7 – Parcel 0069 04002, Rockspring Street Lot 6 – Parcel 0069 04010, 601 East Avenue – Parcel 0079 04002, Swain Street Lot – Parcel 0084 02003, Booth Avenue Lot – Parcel 0084 02017, 515 Hilliard Street – Parcel 0091 05006, Southerland Street Lot – Parcel 0091 05011, 1022 Standish Street – Parcel 0091 07005, 521 Neathery Street – Parcel 0093 03012, 705 Jefferson Street – Parcel 0097 01001, 741 Jefferson Street – Parcel 0097 01005, 211 Hawkins Drive – Parcel 0111 03003, and 202 Hawkins Drive – Parcel 0111 04006. The properties have been through the upset bid process and the board is now free to sell the properties or reject the offers.

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Carolyn Faines, vote unanimous, to approve the following resolutions accepting the bids for 421 Alexander

[illegible][illegible]

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$3,800.00** from **Paulita Garcia Vasquez** for the purchase and sale of County owned real property, which is more particularly described below:

403 Bobbitt Street, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0060 04002A.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **April 10, 2021** stating that said offer from **Paulita Garcia Vasquez** in the amount of **\$3,800.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Paulita Garcia Vasquez** in the amount of **\$3,800.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit "A", is hereby accepted for the property described herein and the Board's Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$1,800.00** from **Paulita Garcia Vasquez** for the purchase and sale of County owned real property, which is more particularly described below:

First Street Lot, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0066 02006.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **April 10, 2021** stating that said offer from **Paulita Garcia Vasquez** in the amount of **\$1,800.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Paulita Garcia Vasquez** in the amount of **\$1,800.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit "A", is hereby accepted for the property described herein and the Board's Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$3,100.00** from **Rosalinda Grady** for the purchase and sale of County owned real property, which is more particularly described below:

2229 St. Matthews Street, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0067 01003.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **April 10, 2021** stating that said offer from **Rosalinda Grady** in the amount of **\$3,100.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Rosalinda Grady** in the amount of **\$3,100.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$3,200.00** from **Rosalinda Grady** for the purchase and sale of County owned real property, which is more particularly described below:

2257 St. Matthews Street, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0067 01008.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on ***April 10, 2021*** stating that said offer from **Rosalinda Grady** in the amount of **\$3,200.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Rosalinda Grady** in the amount of **\$3,200.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$1,300.00** from **Paulita Garcia Vasquez** for the purchase and sale of County owned real property, which is more particularly described below:

813 Roberson Street, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0068 02015.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on ***April 10, 2021*** stating that said offer from **Paulita Garcia Vasquez** in the amount of **\$1,300.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Paulita Garcia Vasquez** in the amount of **\$1,300.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$1,600.00** from **Rosalinda Grady** for the purchase and sale of County owned real property, which is more particularly described below:

Rockspring Street Lot 7, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0069 04002.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **April 10, 2021** stating that said offer from **Rosalinda Grady** in the amount of **\$1,600.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Rosalinda Grady** in the amount of **\$1,600.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$1,400.00** from **Rosalinda Grady** for the purchase and sale of County owned real property, which is more particularly described below:

Rockspring Street Lot 6, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0069 04010.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **April 10, 2021** stating that said offer from **Rosalinda Grady** in the amount of **\$1,400.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Rosalinda Grady** in the amount of **\$1,400.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$1,848.00** from **Rosalinda Grady** for the purchase and sale of County owned real property, which is more particularly described below:

601 East Avenue, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0079 04002.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **April 15, 2021** stating that said offer from **Rosalinda Grady** in the amount of **\$1,848.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Rosalinda Grady** in the amount of **\$1,848.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$1,640.00** from **Rosalinda Grady** for the purchase and sale of County owned real property, which is more particularly described below:

Swain Street Lot, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0084 02003.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on ***April 15, 2021*** stating that said offer from **Rosalinda Grady** in the amount of **\$1,640.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Rosalinda Grady** in the amount of **\$1,640.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$1,440.00** from **Paulita Garcia Vasquez** for the purchase and sale of County owned real property, which is more particularly described below:

Booth Avenue Lot, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0084 02017.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on ***April 15, 2021*** stating that said offer from **Paulita Garcia Vasquez** in the amount of **\$1,440.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Paulita Garcia Vasquez** in the amount of **\$1,440.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$4,954.00** from **Rosalinda Grady** for the purchase and sale of County owned real property, which is more particularly described below:

**515 Hilliard Avenue, Henderson, North Carolina 27536, Vance County Tax Department
Parcel Number 0091 05006.**

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **April 15, 2021** stating that said offer from **Rosalinda Grady** in the amount of **\$4,954.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Rosalinda Grady** in the amount of **\$4,954.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

.

**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$2,701.00** from **Paulita Garcia Vasquez** for the purchase and sale of County owned real property, which is more particularly described below:

**Southerland Street Lot, Henderson, North Carolina 27536, Vance County Tax Department
Parcel Number 0091 05011.**

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **April 15, 2021** stating that said offer from **Paulita Garcia Vasquez** in the amount of **\$2,701.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Paulita Garcia Vasquez** in the amount of **\$2,701.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

.

**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$1,479.00** from **Paulita Garcia Vasquez** for the purchase and sale of County owned real property, which is more particularly described below:

1022 Standish Street, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0091 07005.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **April 15, 2021** stating that said offer from **Paulita Garcia Vasquez** in the amount of **\$1,479.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Paulita Garcia Vasquez** in the amount of **\$1,479.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

.

**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$5,527.00** from **Paulita Garcia Vasquez** for the purchase and sale of County owned real property, which is more particularly described below:

521 Neathery Street, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0093 03012.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on ***April 15, 2021*** stating that said offer from **Paulita Garcia Vasquez** in the amount of **\$5,527.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Paulita Garcia Vasquez** in the amount of **\$5,527.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

.

**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$3,154.00** from **Nahid Sanaei** for the purchase and sale of County owned real property, which is more particularly described below:

705 Jefferson Street, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0097 01001.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on ***April 15, 2021*** stating that said offer from **Nahid Sanaei** in the amount of **\$3,154.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Nahid Sanaei** in the amount of **\$3,154.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

.
**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$5,313.00** from **Nahid Sanaei** for the purchase and sale of County owned real property, which is more particularly described below:

**741 Jefferson Street, Henderson, North Carolina 27536, Vance County Tax Department
Parcel Number 0097 01005.**

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **April 15, 2021** stating that said offer from **Nahid Sanaei** in the amount of **\$5,313.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Nahid Sanaei** in the amount of **\$5,313.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

.
**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$2,100.00** from **Rosalinda Grady** for the purchase and sale of County owned real property, which is more particularly described below:

**211 Hawkins Drive, Henderson, North Carolina 27536, Vance County Tax Department
Parcel Number 0111 03003.**

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **April 10, 2021** stating that said offer from **Rosalinda Grady** in the amount of **\$2,100.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Rosalinda Grady** in the amount of **\$2,100.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$2,350.00** from **Rosalinda Grady** for the purchase and sale of County owned real property, which is more particularly described below:

202 Hawkins Drive, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0111 04006.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **April 10, 2021** stating that said offer from **Rosalinda Grady** in the amount of **\$2,350.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Rosalinda Grady** in the amount of **\$2,350.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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REO Properties – New Offers. Attorney Care stated that two new offers had been received for real properties located at Dorsey Avenue – Parcel 0058 03002 and 2817 Hwy 39 North – Parcel 0206 02016A. The board needs to vote on whether or not to proceed with the sale by advertising for upset bids and recommended approval of the resolution to begin the upset bid process for the properties. The Dorsey Avenue property is jointly owned with the City of Henderson, so any action will need to be contingent upon the city taking similar action.

Motion was made by Commissioner Gordon Wilder to approve the upset bid process for real property located at Dorsey Avenue – Parcel 0058 03002 and 2817 Hwy 39 North – Parcel 0206 02016A, contingent upon the City taking similar action on the Dorsey Avenue property. This motion was seconded by Commissioner Thomas S. Hester, Jr. and unanimously approved.

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**RESOLUTION AUTHORIZING UPSET BID PROCESS
FOR SALE OF REAL PROPERTY
Dorsey Avenue Lot, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **Dorsey Avenue Lot, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0058 03002**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$3,090.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Terrence M. Foster**; and

WHEREAS, **Terrence M. Foster** has paid the required deposit in the amount of **\$750.00** with his initial offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.

2. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.

3. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.

4. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.

5. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.

6. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in

possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

7. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**

8. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION AUTHORIZING UPSET BID PROCESS
FOR SALE OF REAL PROPERTY
2817 Hwy 39 North, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **2817 Hwy 39 North, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0206 02016A**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$4,480.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Matusalen Garcia Soto**; and

WHEREAS, **Matusalen Garcia Soto** has paid the required deposit in the amount of **\$750.00** with his offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying bid is received, a new notice of upset bid shall be published and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.

5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at a closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.
8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**
9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 3rd day of May, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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County Manager's Report

Waiver of Permit Fees – Rebuilding Hope Servants on Site. County Manager Jordan McMillen stated that Rebuilding Hope, Inc. is conducting a special edition servants on site (SOS) event this summer. The program will be extended for 10 weeks running from June 19th – August 28th and will include roof repairs and replacements as well as construction of handicapped ramps and other minor projects in Vance County for needy families. Rebuilding Hope has asked that the permit fees be waived for these projects.

Motion was made by Commissioner Gordon Wilder to waive the permit fees for Rebuilding Hope's Servants on Site program. This motion was seconded by Commissioner Carolyn Faines and unanimously approved.

Old Animal Shelter Lease - Ruin Creek Animal Protection Society. Mr. McMillen noted that the county has an existing lease arrangement with Ruin Creek Animal Protection Society

(RCAPS) for use of the county's old animal shelter to support their animal rescue work. The work of RCAPS has provided is a tremendous benefit to the county's animal services department and is critical to the county's success in maintaining a low euthanasia rate at the shelter. The current lease arrangement permits RCAPS to use the old shelter at no cost for office purposes, temporary shelter during times of overflow at the county shelter, and for staging rescue animals for delivery out of state. Additionally RCAPS is limited in its ability to generate revenue from this location and/or provide services that are duplicating or in competition with the county department. RCAPS would like to renew the lease agreement and is requesting the county to allow them to carry out spay and neuter services at the old shelter. County staff believes this additional service would fill a gap and benefit the county's animal services department. The board was provided a copy of the lease for consideration. Mr. McMillen stated that public notice has been provided of the board's intention to extend the lease agreement.

Motion was made by Commissioner Carolyn Faines, seconded by Commissioner Leo Kelly, Jr., vote unanimous, to approve the lease extension with Ruin Creek Animal Protection Society for use of the county's old animal shelter building on Vance Academy Road.

Ambulance Franchise Application – North State Medical Transport. Mr. McMillen advised that the county's recently updated ambulance franchise ordinance requires ambulance providers to reapply and be approved for an ambulance franchise in accordance with the new ordinance prior to June 30, 2021. The new ordinance requires providers to be certified at the Basic Life Support (BLS) and Advance Life Support (ALS) levels and requires them to provide backup emergency services as needed under the Vance County EMS system plan. North State Medical Transport's application as submitted appears to meet all requirements of the ordinance. They have a lease agreement for a location at Maria Parham and began operating out of this location May 1. Staff recommends moving forward with approval. State law requires consideration of the franchise application at two separate meetings with the final consideration planned for the June 7th meeting.

Motion was made by Commissioner Thomas S. Hester, Jr. to approve and grant the ambulance franchise agreement allowing North State Investment Group, LLC, d/b/a North State Medical Transport to provide ALS and BLS service in Vance County, subject to a second approval as required by NC General Statutes. This motion was seconded by Commissioner Gordon Wilder and unanimously approved.

Ambulance Franchise Application – North Central Medical Transport. Mr. McMillen stated that North Central Medical Transport has reapplied for their ambulance franchise. Their application appears to meet the ordinance requirements and they currently operate from a Vance County location. State law requires consideration of the franchise application at two separate meetings with the final consideration planned for the June 7th meeting.

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, to approve and grant the ambulance franchise agreement allowing North Central Medical Transport, Inc. to provide ALS and BLS service in Vance County, subject to a second approval as required by NC General Statutes.

911 UPS Battery Backup Replacement. Mr. McMillen stated that the FY20-21 budget includes replacement of the UPS battery backup systems for the primary and the backup 911 center. The existing units are 10 years old and are eligible for replacement with zero county dollars. The cost of replacement is \$87,744.52 although with delivery the anticipated cost could be up to \$110,000. This project has been confirmed to be 100% allowable by the NC 911 Board and commissioner approval would allow this to commence before the end of the current fiscal year. Mr. McMillen stated that according to our 911 Director, the county will lose state funds if we do not complete the project before the end of this fiscal year. Recommendation: Approve purchase and replacement of UPS Battery Backup systems at primary and backup 911 centers totaling up to \$110,000 subject to approval from the 911 board to cover 100% of the cost with 911 state ETS funds.

Motion was made by Commissioner Gordon Wilder to approve the purchase and replacement of UPS Battery Backup systems at primary and backup 911 centers totaling up to \$110,000 subject to approval from the 911 board to cover 100% of the cost with 911 state ETS funds. This motion was seconded by Commissioner Carolyn Faines and unanimously approved.

Presentation of FY 2021-22 Recommended Budget. County Manager Jordan McMillen presented the FY 2021-22 proposed budget and provided a brief synopsis of the budget as follows:

- The recommended general fund budget is \$51,474,132 which represents an increase of \$1,491,553 or 3% over the current year budget.
- Budget presented with **no increase in the general fund property tax rate.** Tax Rate = 89 cents per \$100 in value. The county will realize an additional \$101,176 in property taxes due to natural growth. One penny on the tax rate = \$267,121 in revenue.
- The budget includes **no increases in the solid waste household fee** (\$117 per household), **no increase in the fire tax rate** (8.9 cents), and **no increase in the water usage rate** with a total of \$156,078 transferred from the general fund to cover water system debt service.

Budget Amendment #27
FY 2020-2021
Senior Center

Revenue Amendment Request	Account Number	Revenue Increase (Decrease)
Families First Funding – COVID	10-348-434814	88,302
Total Revenue Increase (Decrease)		\$ 88,302

Expenditure Amendment Request	Account Number	Expense Increase (Decrease)
Care Grant – NEW LINE ITEM	10-611-500149	44,151
Families First Grant – NEW LINE ITEM	10-611-500150	44,151
Total		\$ 88,302

Purpose: Kerr-Tar will be issuing a new COVID funding grant for the senior center for COVID related activities. The budget amendment will allow the DSS finance office and the Admin finance office to track COVID reimbursements.

Authorization: Vance County Board of Commissioners
May 3, 2021

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Budget Transfer #9
FY 2020-2021
Fire Department

Transfer From:	Account Number	Amount
Contingency	10-999-500099	5,300
Total		\$ 5,300

Transfer To:	Account Number	Amount
Capital Outlay	10-531-500074	5,300
Total		\$ 5,300

Purpose: Replacement of riding mower; existing mower’s decking has rusted and employees are using personal mowers. Planned purchase is a TORO zero turn that will allow for mowing backfield at substation.

Authorization: Vance County Board of Commissioners
May 3, 2021

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TAX OFFICE REFUND AND RELEASE REPORT FOR MARCH 2021

SOLID WASTE					
TAXPAYER NAME	TAX YR	REAL	PERSONAL	FEE	REASON
ALSTON JAMES S	2019	0	57.43	112	PERS PROP BILLED
ALSTON JAMES S	2020	0	54.55	117	PERS PROP BILLED

TAXPAYER NAME	TAX YR	REAL	PERSONAL	SOLID WASTE FEE	REASON
BATCHELOR ANNIE P	2020	400.50	0	0	CORRECT/GRANT EX
FOSTER ENTERPRISES LLC	2020	322.88	0	117	REAL PROP - BILL
GEORGE DAVID	2020	0	55.30	0	PERS PROP BILLED
GREATER LOVE MINISTRY	2020	5726.06	0	0	RELIGIOUS
GREATER LOVE MINISTRY	2020	179.87	0	0	RELIGIOUS
JOHNSON NATASHA M	2020	0	25.63	0	PERS PROP BILLED
K & G HOLDINGS LLC	2020	0	0	234	REMOVE SOLID WAS
PROFFITT WAYNE DILL	2020	0	10.25	0	PERS PROP BILLED
TOTAL		6629.31	203.16		
GRAND TOTAL	6832.47				

MONTHLY REPORTS: 911 Emergency Operations, Administrative Ambulance Charge-Offs, Cooperative Extension, EMS, Human Resources, Parks and Recreation, Planning and Development, Tax Collections and Veterans Service.

Miscellaneous

- Appointments. The following appointments were presented to the Board for consideration:
 - Adult Care Advisory Committee – three year term
Reappoint June Royster-Tucker and Lois Williams
 - Public Health Board – three year term
Appoint Dr. William Wooten to fill vacant dentist position.
 - Perry Library Board of Trustees – three year term
Appoint Lee Christine Bennerson to fill vacant position.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Gordon Wilder, vote unanimous, to approve the appointments as presented.

Motion was made by Commissioner Gordon Wilder to enter into closed session to discuss legal matters and a contract negotiation. This motion was seconded by Commissioner Carolyn Faines and unanimously approved.

Upon return to open session, motion was made by Commissioner Gordon Wilder to approve the minutes of the March 1, 2021 closed session. This motion was seconded by Commissioner Thomas S. Hester, Jr. and unanimously approved.

Chairman R. Dan Brummitt recessed the Board of Equalization and Review until the June 7 regular meeting.

As there was no further business, at 8:45 p.m., motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Carolyn Faines, vote unanimous, that the meeting be adjourned.

Approved and signed June 7, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman